ZODWA ZINDOGA (nee DUBE)

Versus

CLEVER ZINDOGA

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO 08 & 22 OCTOBER 2024 & 26 JUNE 2025

Civil Trial- Divorce Action

V. Chikomo, for the plaintiff
A Duri, for the defendant

DUBE J: The plaintiff's claim is for house no. 3455 Garikai Torwood Township Redcliff to be declared her sole and exclusive property. Her reasoning being that she single handedly financed the purchase of the stand on which the parties' home was then constructed. She contends that she effectively financially contributed to the development of the home single handedly up to the state it is to date. She acknowledges the defendant's financial contribution which she testified to be in the sum of US$2 150.00. She readily tenders the financial contribution he made according to her and prays that she be ordered to restitute him in that sum.

She readily acknowledges defendant's involvement in the construction of the house that is by being resourceful in the outsourcing of skilled labourers whom she then paid off. Her prayer was that she be ordered to restitute him for the supervision and coordination he carried out on the project.

FACTUAL BACKGROUND

The parties were married to each other in terms of the then Marriages Act [Chapter 5:11 now Chapter 5:17] on the 21st of March 2013 and the marriage still subsists. The plaintiff instituted proceedings seeking dissolution of the marriage and ancillary relief. The parties narrowed down issues and filed joint pre-trial conference minutes and left the court to decide on the sharing of the matrimonial house known as number 34555, Garikai Torwood Township, Redcliff. In her pleadings the Plaintiff contended that she should be awarded the house in

dispute as her sole and exclusive property whilst the defendant avers that the property should be distributed equally at a ratio of 50% each amongst the parties. Upon opening of the trial both parties led viva voce evidence and concluded by filing written closing submissions. I must state that counsel for the Plaintiff filed hers beyond the agreed timelines. As a result the Defendant's counsel filed hers first without site of plaintiff's heads. Be that as it may, for her part the plaintiff prayed for a 90% share in the matrimonial house and tendered a refund of the amount she accepts defendant directly contributed. The defendant on the other hand was adamant on the 50/50 share ratio.

ANALYSIS OF THE EVIDENCE

The plaintiff led viva voce evidence to the effect that she was employed by ZIMASCO as a buyer for the company from the time she met the Defendant, through their courtship, their marriage up to the date of her testimony in court. She submitted documentary proof of her earnings for the period January 2014 to December 2017 which were accepted into the record as evidence and marked as Exhibit "A". She explained to court that her monthly income for the period 2014-2015 was usually in the region of US$900.00 and in some instances US$1 200.00 depending on the bonus or leave days which accrued as cash.

She advised the court that the property subject of the matter was purchased on the 25th and 26 of March 2014. She said this was because the payments were made in two instalments, a sum of US$500.00 was paid to the seller on 24th March 2014, while a sum of US$1 400.00 was then paid on the 26th of March 2014. She explained further that a payment of US$100.00 was equally paid on 26th March 2024 for drafting of the agreement of sale document.

By way of back ground leading to the actual purchase of the stand she advised the court that the defendant informed her of a person selling a residential stand, being the property now in dispute. Negotiations were made to have the property price reduced from US$2000.00 to US$1 900.00.

She equipped the defendant with her ATM card, a Barclays bank card which was used to draw out US$500.00 on 25 March 2014 and US$1 400.00 on 26 March 2014 and a sum of US$100.00 on 26 March 2014 at a CABS, ZIMSWITCH ATM in Kwekwe. She indicated these withdrawals on the bank statement taken in as evidence and marked as Exhibit "B".

I must remark at this stage that the evidence of the plaintiff neatly dove tails with the documentary exhibits she tendered. However quite strikingly she states that on the day of the final payment, she left the defendant alone at the Municipal offices wherein the deed of sale was drafted while she went to withdraw the drafting fee. Upon her return she discovered that the defendant had placed his name alone as the purchaser. She was listed as a dependant together with her minor daughter from her previous relationship and defendant's daughter from a similar earlier relationship. She testified to the effect that she did not see anything amiss as defendant was the head of family. She referred to him as "father" for the purposes of that transaction and called such throughout her testimony in court.

Her evidence progressed in a similar fashion as she narrated how construction then started, how she would hand over money to the defendant to go and source for materials and to pay for labour and all other expenses related to the construction. Further striking is the fact that the defendant kept all the receipts and records for purchases or transactions done through his hand albeit he not being the source of the funds. I say so because the plaintiff on her part produced her bank statement which closely tallies with the receipts in the possession of the defendant. This trend and the act by the defendant, of misrepresenting the plaintiff as a dependant as opposed to a co-purchaser tends to suggest that the defendant already planned his exit and prepared for a day in court such as the present. If not, why would the defendant insist on all receipts issued in his name and meticulously keep them to himself without disclosing them to his wife? If he indeed contributed 50 % towards purchase of the house why not inform the drafter of the deed of sale that the wife is a co-purchaser?

During her testimony the plaintiff gave credit to the defendant where it was due and recognised his effort such as supervising the construction and generally being available to do the errands. She stood cross examination firmly and if anything, cross examination elicited information that favoured her case more which she had not earlier disclosed. For example that the truck used by the defendant to do errands and hire services in fact belonged to her. Further that she had to sell it when Defendant was planning on gifting it to his parents. Proceeds of its sale further improved the construction project on the disputed property. She produced evidence of its purchase without difficulty.

On the other hand, the defendant opened his testimony and shied away from producing documentary evidence of his earnings. He wanted the court to believe that the bulk of his

earnings were informal and undocumented. His evidence was to the sum total that he hired out the truck, he would purchase food stuffs and other necessities to gold panners and they would share profits upon processing the ore. He kept no single record of that. This is startling compared to the meticulous manner in which he kept records of purchases that tallied with plaintiff's bank statements. If indeed he was such a stickler for detail one would have expected him to have a neat pile of his payslips, a journal of his dealings at the mines, his expenses and net profits. He also claimed to have owned a hardware shop from which he supplied some of the construction materials. If indeed he operated a hardware from whence, he took building materials to augment their construction project one would have expected him to produce records such as his stock sheets and banking records. He produced none. If anything during his testimony and under cross examination he remained very evasive. Above all he did not seem to hold the plaintiff in high regard as she did. He would just call her a blatant liar without substantiating. He would get sarcastic and rude when commenting on Plaintiff's contributions. He expended most of his energy attacking the possibility of Plaintiff constructing a house on her salary of USD900, with disclosing exactly how his earnings made the difference. In the totality of his evidence the defendant came out as a very poor witness who had more to hide from the court than candidly take the court into his confidence. It became difficult to ascertain the amount of his contribution directly or indirectly serve for what is admitted by the plaintiff.

THE LAW

Section 7 of the Matrimonial Causes Act [*Chapter 5:13*] reads as follows:

> 7. Division of assets and maintenance orders
>
> (1) Subject to this section, in granting a decree of divorce, judicial separation or nullity of marriage, or at any time thereafter, an appropriate court may make an order with regard to— (a) the division, apportionment or distribution of the assets of the spouses, including an order that any asset be transferred from one spouse to the other;
>
> ……
>
> (4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following—

> (a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
>
> ……
>
> (g) the duration of the marriage;
>
> and in so doing the court shall endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses. (My own underlining for emphasis)

In the present case it is common cause that the parties were married for about ten years. As earlier indicated the defendant made a very poor witness. It is difficult to know on which part of his evidence he told a lie or when he told the truth. The bottom line being that he did not substantiate his evidence with any documentary proof. The court will thus rely on the testimony of the plaintiff. In summary the defendant alerted her to a property on offer for sale. She single handedly purchased such property. She contributed financially to its development while defendant contributed indirectly by sourcing building material, labour and supervising same. Despite being the financial muscle of the household the plaintiff still contributed to the household groceries as defendant only contributed bread and relish when he could. Having regard to section 7 of the Matrimonial Causes Act, particularly the provisions I have highlighted above I am convinced that the proposition by the Plaintiff is just and equitable.

I am fortified in this view by the case of *Usayi v Usayi* SC 22-24 where Mathonsi JA et al held as follows:

> "It is significant that s 7 does not recognize the spectre of registration of property as an important consideration in the division except that s 7 (3) protects certain types of property from the long reach of the court. The property forming the subject of this appeal does not fall under the exclusionary provisions of subs (3). Yet subs (1) specifically empowers the court, where appropriate, to order the transfer of property from one spouse to the other. Having said that, it becomes apparent that what the court a quo regarded as a matter of life and death, the registration of title, was only a footnote in the broader scheme of things."

I therefore do not agree with counsel for the defendant that cession of occupational rights and interest in the disputed property at the Redcliff Municipal offices vest real rights upon the defendant which this court is incapable of interfering with if it deems appropriate.

While discussing the implications of sec 7 in the case of *Lock v Lock* SC 51-20 at p 8 it was held:

> "The import of the above section was made clear in Gonye (supra) where the following was stated: 'It is important to note that a court has an extremely wide discretion to exercise regarding the granting of an order for the division, apportionment or distribution of the assets of the spouses in divorce proceedings. The terms used are the 'assets of the spouses' and not matrimonial property. It is important to bear in mind the concept used, because the adoption of the concept matrimonial property often leads to the erroneous view that assets acquired by one before marriage or when the parties are separated should be excluded from the division, apportionment or distribution exercise. The concept the assets of the spouses is clearly intended to have assets owned by the spouses individually (his or hers) or jointly (theirs) at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets. To hold, as the court a quo did, that as a matter of principle assets acquired by a spouse during the period of separation are to be excluded from the division, apportionment or distribution a court is required to make under s 7 (1) of the Act is to introduce an unnecessary fetter to a very broad discretion, on the proper exercise of which the rights of the parties depend." (Cited with approval in the case of *Usayi v Usayi* supra)

Considering the length of the marriage at almost 10 years I am of view that the 10% share in the disputed property and an additional USD2 150.00 which though not proven as a matter of fact, but nonetheless plaintiff tenders as defendant's direct contribution, is sufficient for the defendant to pick himself up and move on. This is more so considering that the plaintiff still has the duty to provide shelter to the parties' minor child.

DISPOSITION

Having said the above the plaintiff's prayer succeeds and in the result the following order is made:

1.The plaintiff be and is hereby awarded house no. 3455 Garikai Torwood Township ,Redcliff as her sole and exclusive property.

2. The plaintiff shall refund the defendant as sum of USD2 150.00 as his direct contribution towards developing the said property per para (1) above within 90 days of this order.

3. The Registrar of this Court shall appoint an independent Estate valuer to determine the current value of house number 3455 Garikai, Torwood Township, Redcliff within 30 days of this order and the parties shall meet the cost of such valuation in equal shares.

4. Upon such valuation the plaintiff shall pay to the defendant a 10% share of the value to the defendant through his legal practitioners within 90 days of such valuation.

5. That immediately upon such payment per para 4 above, the defendant shall take all steps necessary to sign all documents required of him at the Municipality of Redcliff, Zimra and all such other authorities to effect transfer/ cession of title and interest in the said property into the names of the plaintiff failing which the Sheriff of the High court or his lawful deputies shall is hereby authorized to attend and so sign.

6. Plaintiff shall be bear the cost of such transfer.

7. Each party to bear its own costs.

V. Chikomo Law Chambers, plaintiff's legal practitioners
Pundu and Company, defendant's legal practitioners